



Maritime &
Coastguard
Agency

Guidance

ANNEX I - Amendment to MARPOL

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AMENDMENTS TO MARPOL ANNEX I



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AMENDMENTS TO MARPOL ANNEX I

(Prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in Arctic waters)

1. The title of chapter 9 is amended as follows:

“Chapter 9 – Special requirements for the use or carriage of oils in polar waters”

2. A new regulation 43A is added in chapter 9 after existing regulation 43, as follows:

“Regulation 43A

Special requirements for the use and carriage of oils as fuel in Arctic waters

1. With the exception of ships engaged in securing the safety of ships or in search and rescue operations, and ships dedicated to oil spill preparedness and response, the use and carriage of oils listed in regulation 43.1.2 of this Annex as fuel by ships shall be prohibited in Arctic waters, as defined in regulation 46.2 of this Annex, on or after 1 July 2024.
2. Notwithstanding the provisions of paragraph 1 of this regulation, for ships to which regulation 12A of this Annex or regulation 1.2.1 of chapter 1 of part II-A of the Polar Code applies, the use and carriage of oils listed in regulation 43.1.2 of this Annex as fuel by those ships shall be prohibited in Arctic waters, as defined in regulation 46.2 of this Annex, on or after 1 July 2029.
3. When prior operations have included the use and carriage of oils listed in regulation 43.1.2 of this Annex as fuel, the cleaning or flushing of tanks or pipelines is not required.
4. Notwithstanding the provisions of paragraphs 1 and 2 of this regulation, the Administration of a Party to the present Convention the coastline of which borders on Arctic waters may temporarily waive the requirements of paragraph 1 of this regulation for ships flying the flag of that Party while operating in waters subject to the sovereignty or jurisdiction of that Party, taking into account the guidelines to be developed by the Organization. No waivers issued under this paragraph shall apply on or after 1 July 2029.

5. The Administration of a Party to the present Convention which allows application of paragraph 4 of this regulation shall communicate to the Organization for circulation to the Parties particulars of the waiver thereof, for their information and appropriate action, if any.”



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